Filing # 258329328 E-Filed 10/01/2026 04:44:39 PM

IN THE SUPREME COURT OF FLORIDA
CASE NO. SC2024-1361; SC2025-0250
Lower Tribunal No: CF-15-04903-XX

BENJAMIN DAVIS SMILEY, JR.,
Appellant,

v.

STATE OF FLORIDA,
Appellee.

Petitioner,
v.
STATE OF FLORIDA,
Secretary, Florida Department of Corrections,
Respondent.
And
James Uthmeier,
Attorney General,
Additional Respondent.

ON APPEAL FROM THE CIRCUIT COURT OF THE TENTH JUDICIAL CIRCUIT, POLK COUNTY, FLORIDA.
&
PETITION FOR WRIT OF HABEAS CORPUS

APPELLANT'S MOTION FOR REHEARING

COMES NOW the Appellant, BENJAMIN DAVIS SMILEY, JR., by and through undersigned counsel, and hereby moves this Court

to supplement the Record on Appeal pursuant to Florida Rules of Appellate Procedure, Rule 9.330, and respectfully moves this Court to reconsider its opinion entered on September 17, 2026, affirming the circuit court's denial of his 3.851 Motion for Postconviction Relief and denying Appellant's Petition for Writ of Habeas Corpus. By this motion, the Appellant submits that this honorable Court has overlooked and misapprehended points of law and facts critical to the resolution of the claims presented in Mr. Smiley's appeal as discussed below.

Relevant Procedural History

Mr. Smiley was convicted and sentenced to death on one count of first-degree murder of Clifford Drake. He was additionally convicted of robbery with a firearm, aggravated assault with a firearm, and burglary of a dwelling with an assault or battery while armed with a firearm. Mr. Smiley filed his original Motion for Postconviction Relief pursuant to Florida Rule of Criminal Procedure 3.851 on December 29, 2021. Mr. Smiley later filed amended motions on May 19, 2022, July 26, 2022, and October 9, 2023. In an order dated August 10, 2022, the circuit court issued an order granting an

evidentiary hearing on claims 1, 2, 3, 8, 11, 12, 14, 15, reserved ruling on claim 17, and denied a hearing on the remaining claims. On March 1, 2023, the circuit court issued an order on defendant's motion for reconsideration which granted an evidentiary hearing for claim 10, but reiterated the denial of a hearing on claims 4, 5, 6, 7, 13, and 16. Following a bi-furcated evidentiary hearing, the circuit court denied all of Mr. Smiley's claims on August 16, 2024.

On February 24, 2025, Mr. Smiley filed his initial brief with this Court challenging the denial of his postconviction motion and a Petition for Writ of Habeas Corpus. On September 17, 2026, this Court issued its opinion affirming the postconviction court's denial of his 3.851 motion and denying Appellant's Petition for a Writ of Habeas Corpus. This Motion for rehearing follows.

Claim A, Failure to Move to Reconsider Admissibility of the Ballistics Evidence

In denying Mr. Smiley's claim that trial counsel was ineffective for failing to move for reconsideration of the trial court's order admitting the ballistics evidence because it would have been futile, this Court overlooked important facts that demonstrate such

arguments would have prevailed and the circuit court's finding that Smiley's trial counsel did render deficient performance.

This Court found that arguments that trial counsel could make for the motion would have been cumulative to what Mr. Smiley had already argued pro se at the motion hearing. Those arguments included that the evidence was unfairly prejudicial, that the State had not proven he possessed the firearm, and that the witnesses who saw him with the firearm, John McDonald and Smantha Lee, were not credible. However, this Court failed to consider that none of the above arguments address the "inextricably intwined" theory of admissibility under which the trial court made its ruling. Under the "inextricably intertwined" theory, evidence of other crimes is admissible when it is both relevant and necessary to adequately describe the charged offense. *Wright v. State*, 19 So. 3d 277, 292 (Fla. 2009) ("Where it is impossible to give a complete or intelligent account of the criminal episode without reference to other uncharged crimes or bad conduct, such evidence may be used to cast light on the primary crime or elements of the crime at issue.") The evidence from the other crime must be "significantly linked in time and

circumstance" to the charged offense. *Id.* While Mr. Smiley's prejudice argument would address relevancy, that is only part of the analysis when admitting prior acts under the "inextricably intertwined" theory. The prejudice argument says nothing about how necessary or close in time and circumstances the evidence from the Riley murder was to the Drake murder. Mr. Smiley's other arguments also say nothing about the link in time and circumstance to the present crime. Nor do those arguments go to whether the ballistics evidence was necessary to adequately describe the present crime.

The arguments Mr. Smiley made actually address whether the evidence would be admissible under the *Williams* rule, which would have required the State to demonstrate by clear and convincing evidence that Mr. Smiley previously possessed the firearm. *Kopsho v. State*, 84 So. 3d 204, 212 (Fla. 2012). The State explicitly did not argue that the ballistics evidence was admissible under the *Williams* rule. (R8190-91). Analysis under *Williams* rule was also not the basis of the trial court's order. (R616). The trial court admitted the ballistics evidence based on it being inextricably intertwined with the present case. *Id.*

None of the arguments Mr. Smiley made at the hearing addressed the information that is essential to determining whether the two crimes were inextricably intertwined. It is not simply that Mr. Smiley did not say the words "inextricably intertwined;" he did not argue under that theory of admissibility at all. The trial court effectively heard no argument from the defense on the "inextricably intertwined" issue, factually or legally. Trial counsel would have had to make different legal arguments under a different legal theory than Mr. Smiley had at the original hearing to effectively address the State's argument and the trial court's ruling. Thus, the arguments made by trial counsel would not have been cumulative. That the trial court denied the State's motion for reconsideration where they reiterated the same argument they had previously made does not mean that the trial court would have denied a motion for reconsideration from the defense presenting new arguments. The motion for reconsideration would not have been futile.

Further, this Court overlooked that trial counsel was appointed prior to the order being issued by the trial court. The facts here show that trial counsel had been appointed as standby counsel for the

hearing on October 9, and, thus, would have been present for the hearing and heard the arguments. (R8074). Trial counsel was formally appointed to the case on October 13, 2015, and the order allowing the admission of the ballistics evidence was issued by the trial court on October 16, 2015. (R8322; R614-619). Thus, trial counsel could have and should have requested to submit further argument on the issue before the trial court even issued a ruling, therefore obviating the need for the trial court to reconsider a ruling.

In conclusion, given that trial counsel would have had to present different legal and factual grounds than prior argument on a motion for reconsideration, and given that those arguments likely would have been meritorious, failing to file a motion for reconsideration of the trial court's ruling on the admissibility of the ballistics evidence was deficient performance. Given the enormous prejudice of introducing evidence that Mr. Smiley was involved in another shooting, even with the trial court's limitations, a reasonable probability exists that the introduction of this evidence influenced the verdict and, thus, that Mr. Smiley was prejudiced by trial counsel's deficiency.

Claim B, Failure to Argue the Sweatshirt was Worn by the Shooter

In denying Mr. Smiley's claim that the failure to argue that the wearer of the sweatshirt was not the shooter was not ineffective, this Court failed to consider how this decision was not a strategic choice by trial counsel. While it is true that "strategic decisions do not constitute ineffective assistance of counsel if alternative courses have been considered and rejected and counsel's decision was reasonable under the norms of professional conduct," this Court's characterization of this claim as such an "alternative course," that is, as something separate from and in opposition to trial counsel's purported strategy of showing the police's poor investigation and lack of evidence against Mr. Smiley, is inaccurate. *Occhicone v. State*, 768 So. 2d 1037, 1048 (Fla. 2000). Arguing that the wearer of the sweatshirt was not the shooter is not in contradiction nor does it detract from the argument that the police failed to conduct a thorough investigation. In fact, if that were indeed trial counsel's strategy, it was ineffective for them not to make the argument that there was no evidence the wearer of the hoodie was the shooter. The facts that tend to show the hoodie may not have been worn by the

shooter also tend to show that the police conducted a poor investigation. For example, that there was no evidence of gunshot residue on the hoodie supports both that the police did a poor investigation and that the person who wore the hoodie may not have been the shooter. These are not mutually exclusive arguments, and they do not detract from one another. In fact, they lend support to each other.

There is also nothing to support that failing to raise this argument was "considered and rejected" by trial counsel. *Id*. There is nothing to support that trial counsel put any thought into the upsides and downsides of the argument and then elected to make a different argument. There is nothing to support that they considered how the argument fit with their core strategy of highlighting law enforcement incompetency. Ultimately, trial counsel's failure to raise this argument to the jury both made their own purported strategy weaker as well as left a key State argument, that the sweatshirt that had Mr. Smiley's DNA was worn by the shooter, effectively unchallenged. Given the persuasive nature of DNA evidence to juries, a reasonable probability exists that the failure of trial counsel to

combat the importance of such evidence influenced the verdict and, thus, that Mr. Smiley was prejudiced by trial counsel's deficiency.

Claim C, Failure to Object to the Safe and Move for a Mistrial

This Court found that Smiley failed to establish deficiency before he must show that the admission of the evidence was "improper or objectionable and that there was no tactical reason for failing to object." *Citing*, *Stephens v. State*, 975 So. 2d 405, 420 (Fla. 2007). However, the admission of the photograph showing an incorrect safe satisfies the first principle stated by this Court, whether the admission of the evidence was improper or objectionable." The wrongly admitted safe was not properly admitted and was objectionable because it was not relevant to the case at hand.

In determining that trial counsel was not deficient for not objecting to the admission of the incorrect safe and moving for a mistrial, this Court failed to consider all of the circumstances of the case. This Court found that it was reasonable for trial counsel to conclude that the introduction of the incorrect safe would not lead to the jury inferring that Mr. Smiley had committed another robbery.

However, this Court did not consider that the jury in this case had already heard that Mr. Smiley was involved in another case that involved the same firearm. They had heard witnesses refer to another case. Had the incorrect safe been the only evidence from another case that had been introduced, it could be reasonable to assume the jury would not infer that Mr. Smiley had been involved in another robbery. But it was not the only evidence from another case and it was not reasonable to allow its admission in this case.

Instead, the introduction of the incorrect safe built upon the other evidence of another crime that had already been introduced and led to a strong negative inference that Mr. Smiley had committed another violent crime. This negative inference far outweighed anything that could be gained from allowing the safe into evidence and failing to move for a mistrial and was not a reasonable, tactical decision. Given this negative inference, a reasonable probability exists that the failure of trial counsel to allow the introduction of the safe influenced the verdict and, thus, that Mr. Smiley was prejudiced by trial counsel's deficiency.

Claim D, Failure to Adequately Argue Against Wilkerson's Identification of Mr. Smiley

In determining that trial counsel was not ineffective in the way they handled Wilkerson's identification of Mr. Smiley, this Court failed to consider several important factors and did not address all of Mr. Smiley's arguments. In finding that a motion to suppress the photo pack would have been futile, the Court only discussed that Mr. Smiley was wearing different clothing to the other suspects in the photo lineup and the detective's suggestive correction to Wilkerson after he said Smiley's photograph looked more like the shooter. However, the Court ignored that the detective violated his department's procedure by administering the photo lineup himself, after identifying Mr. Smiley as a suspect, in addition to correcting Wilkerson's wording. (PCR3245-47). Neutral administration of a photo pack is now specifically guaranteed by legislation in Section 92.70, Florida Statutes, given the risk that a non-neutral administrator could even accidentally influence a witness's identification. Though that statute may not have been applicable at the time, it does highlight the importance of the local procedure that the detective violated. This Court also ignored that Mr. Smiley's

photograph was placed top of the lineup. (R1461). These factors combined with the fact that Mr. Smiley was in different clothing that the other members of the photo lineup demonstrate that the photo lineup was unduly suggestive and should have been suppressed and that trial counsel was ineffective for failing to file the motion.

Since the photo lineup was unduly suggestive, this Court should have addressed whether Wilkerson's identification of Mr. Smiley should have been excluded. Under *State v. Gibson*, 109 So.3d 251 (Fla. 2d DCA 2013), the following factors should have been considered when determining if the identification should have been excluded:

> (1) the opportunity of the witness to view the criminal at the time of the crime,
>
> (2) the witness's degree of attention,
>
> (3) the accuracy of the witness's prior description of the criminal,
>
> (4) the level of certainty demonstrated by the witness at the confrontation, and
>
> (5) the length of time between the crime and the confrontation."

When applying the facts of this case, Wilkerson did not have a good opportunity to view the shooter or pay close attention, as it was night and the lighting was dim (PCR3331-37) and he was focused on

the gun than the person holding it (R4094); the original sketch resembled McDonald rather than Mr. Smiley; Wilkerson's "more like" wording did not indicate a high level of certainty; and two years had passed between the time of the crime and the photo lineup. Thus, Wilkerson's identification should have been excluded and trial counsel was ineffective for failing to make the argument.

This Court further failed to address Mr. Smiley's argument that trial counsel was ineffective for failing to raise these issues to the jury. Even if the above issues with the identification did not raise to the level of suppression or exclusion, trial counsel was ineffective for failing to raise them to the jury. Given that Wilkerson's identification was the central piece of evidence that Mr. Smiley was the actual shooter, a reasonable probability exists that the failure of trial counsel to attack the identification influenced the verdict. Mr. Smiley was therefore prejudiced by trial counsel's deficiency.

Claim E, Failure to Argue Violations of Law Enforcement Policies and Procedures

In denying the claim that trial counsel was ineffective for not impeaching law enforcement with their own policies and procedures, this Court misapprehended Mr. Smiley's argument. It is true that Mr.

Smiley cannot point to any specific effect of law enforcement failing to follow each procedure. That is not the argument. Mr. Smiley's argument is that the cumulative effect of trial counsel failing to demonstrate these violations to the jury impacted his right to a fair trial. Trial counsel repeatedly purported that their overall defense strategy was framing law enforcement as incompetent, and they excused their other decisions on this basis. Yet they did not do the bare minimum of demonstrating law enforcement incompetence; that is, showing that they did not follow their own procedures on numerous occasions. If the key defense is that law enforcement ran an incompetent investigation, highlighting the numerous lapses in procedure is vital. The point of this claim is not that law enforcement following this procedure would have turned up potential exculpatory evidence, it is that trial counsel did not make efforts to support their own defense strategy and thus prejudiced Mr. Smiley.

It is inconsistent for this Court to find that counsel was not ineffective for other decisions or lapses on the basis that they were choosing to demonstrate law enforcement incompetence yet not find them ineffective when they fail to make efforts to demonstrate that

incompetence. Trial counsel's failure to confront law enforcement with violations of their policies and procedures undermined the defense strategy of highlighting police incompetence and was ineffective. Given that this was trial counsel's core defense strategy, a reasonable probability exists that the failure of trial counsel to support its own strategy influenced the verdict and that Mr. Smiley was therefore prejudiced.

Claim F, Failure to Characterize Wilkerson as a Suspect

While counsel cannot be ineffective for strategically opting not to characterize another person as a suspect, this Court failed to consider that there is nothing to support that failing to characterize Wilkerson as a suspect was a strategic decision in this case. This Court in its opinion pointed out that trial counsel did allude to Wilkerson being a suspect in closing argument. However, a single allusion is different from a plan to characterize Wilkerson as a suspect throughout the trial.

This Court also found that trial counsel strategically opted to undermine Wilkerson's credibility rather than characterize him as a suspect. Trial counsel in their testimony during the postconviction

hearing indicated that they elected not to characterize Wilkerson as a suspect because they were already characterizing others as suspects, and instead just wanted to demonstrate his inconsistency, bias and prejudice. (PCR4981-82). However, framing Wilkerson as a suspect would have only supported and strengthened that goal. It gives him a strong reason to lie and would demonstrate that he was biased and prejudiced because he had a strong interest in not implicating himself in a homicide. There is no reason to think that framing Wilkerson as a suspect would have detracted from trial counsel's goal of undermining his credibility and every reason to think it would have enhanced it. Nor would pointing out that there are multiple other suspects have detracted from arguing that Mr. Smiley did not commit the murder.

Further, the two trial attorneys had differing postconviction hearing testimony regarding framing Wilkerson as a suspect, with one detailing a conscious decision not to do so and the other indicating that he thought that was part of the strategy. (PCR5291). This suggests that there was not actually a strategic decision at the time to not frame Wilkerson as a suspect. Both trial attorneys did,

however, agree that treating him as a suspect had the potential to have enabled a stronger challenge to his credibility. (PCR4973-74; 5293-94).

This Court in its denial of this claim also suggested that it was reasonable not to frame Wilkerson as a suspect because there was insufficient evidence to support that he was involved. Pointing fingers without sufficient evidence could certainly detract from a defense. However, there was ample evidence that supported Wilkerson being involved in the robbery. The circuit court in its order, for example, pointed to EMT testimony, the convenient timing of Wilkerson returning to the house just as the robbery occurred, and, most significantly, money being returned to the safe days after the robbery. (PCR6129-33). While this may not be enough for the State to prosecute Wilkerson, it is plenty for a defense attorney to cast doubt on Wilkerson's credibility and imply he was involved. This would not have been a situation where the defense was spuriously pointing fingers. There was concrete evidence that suggested Wilkerson was involved and pointing it out would have cast significant doubt on his credibility and the evidence for the murder conviction. It further

would have reframed the entire series of events, which would have had consequences for Mr. Smiley's other convictions and the aggravators in the penalty phase. Wilkerson was a vital witness and a reasonable probability exists that the verdict would have been different had trial counsel sufficiently attacked his credibility.

Mr. Smiley was therefore prejudiced by this deficiency.

Claim G, Failure to Object to Improper Questions of Mr. Smiley and the Introduction of the Photograph with Casey Bisbee

In determining that trial counsel's failure to object to questions asked of Mr. Smiley was not ineffective, this Court overlooked the impact those questions had on Mr. Smiley's credibility and the lack of evidence that this was a reasoned, strategic decision. There is a distinction between questions that merely call for speculation or are argumentative and a series of questions that insinuate the defendant is lying as what occurred in this case. The strategy underlying the decision not to object to the questions in *Jackson*, cited by this Court, centered around maintaining the defendant's credibility. *Jackson v. State*, 127 So. 3d 447, 471-72 (Fla. 2013). Here, the questions directly attacked and undermined Mr. Smiley's credibility. Given that there was no evidentiary hearing granted as to this claim and no

testimony on the issue taken, it is unclear how the Court determined trial counsel's strategy in deciding not to object to these questions. If indeed their strategy was to have Mr. Smiley discredit the other witnesses, it was unnecessary. There were already sufficient bases to challenge the other witness's credibility, for example, that both Lee and McDonald were admitted coconspirators, that could face penalties themselves if they did not cooperate. (R4735, 4626). Lee had been charged with perjury. (PCR67-71). McDonald was on probation for armed robbery when he gave his initial statement to police in this case and had pending charges at the time of the trial. (PCR4894-95; 5669-72; 8184-85). If there was any added benefit to Mr. Smiley answering these improper questions, it was far outweighed by the damage to his credibility. Further highlighting that there is no indication that failing to object was a strategic decision is that trial counsel argued and won a motion in limine preventing these types of questions from being asked, which this Court failed to consider. (R335-50). Trial counsel clearly understood the negative impact these questions could have, and there is nothing to support that their change in position was a strategic decision.

In finding that the photo of Smiley with Casey Bisbee was relevant, the Court ignores the key fact that no one actually identified Casey Bisbee as someone who was present during the robbery. McDonald and Wilkerson failed to pick him out of a line-up. (R4699; 4881-82; 4031). Since no one actually identified Casey Bisbee as the taller assailant, the photo does not actually tend to show anything about who was the shooter. All it demonstrates is that Mr. Smiley is shorter than Casey Bisbee. The photograph was therefore irrelevant and misleading. It improperly suggested that Casey Bisbee and Mr. Smiley were the two assailants and thus, since Mr. Smiley was shorter, he was the shooter when there was no actual evidence that Casey Bisbee was present. Therefore, counsel was ineffective for failing to object to the photo based on relevance.

The photograph was misleading and prejudicial. The questions asked of Mr. Smiley by the State had a negative effect on his credibility. A reasonable probability exists that the verdict would have been different had trial counsel objected to the questions and the photograph, and, thus, Mr. Smiley was prejudiced by this deficient performance.

Claim H, Cumulative Prejudice in the Guilt Phase

Because of the deficiencies described above, this Court should have conducted a cumulative error analysis. The guilt phase was littered with errors, with each alone resulting in sufficient prejudice to call into question the reliability of the jury's verdict and warrant a new trial. When taken together, their impact was compounded. For example, trial counsel's failure to move the trial court to reconsider its ruling on allowing evidence of the Riley murder increased the prejudice from allowing the safe from the Riley murder to be entered into evidence. Trial counsel's failure to adequately attack Wilkerson's credibility by framing him as a suspect is made even more impactful by their allowing questions that attacked Mr. Smiley's credibility. It is clear that when considering the totality of trial counsel's deficient performance, Mr. Smiley was deprived of a fundamentally fair trial. The judgment and sentence should be set aside.

Claim I, Failure to Investigate and Present Mitigation in the Penalty Phase

In finding that trial counsel was not ineffective in their investigation and presentation of mitigation, this Court overlooked several key facts. This Court, like the circuit court, blames much of

the limitations on the mitigation on Mr. Smiley himself for telling trial counsel that he did not want to involve his extended family and that he did not want to be portrayed as having mental deficiencies or mental illness. However, in doing so, this Court fails to consider the numerous facts that contradict trial counsel's narrative.

As for the claim that Mr. Smiley did not want his family involved, trial counsel's notes contradict this. Attorney notes show that Mr. Smiley provided trial counsel the names of all his family members. (PCR3511-16; 5248-49; 6103). There also numerous notations with additional information about those family members, indicating that Mr. Smiley was not closed off about his family and at least provided trial counsel with enough information to conduct an investigation. (PCR4826-27). There are no notations that trial counsel was unable to contact any of the family members. *Id.* Most importantly, trial counsel admitted that it is not reflected anywhere in his notes that Mr. Smiley stifled the investigation of his family members and the presentation of mitigation. (PCR4803).

The record also contradicts the claim that trial counsel did not do further investigation and present mitigation on Mr. Smiley's

mental health because Mr. Smiley did not want to be portrayed as having a mental illness or deficiency. Mr. Smiley willingly provided information regarding his Baker Act to Dr. Hartig. (PCR3402). Further, Dr. Waldman testified that Mr. Smiley had a mental health issue. (PPR2367-69). It is illogical to say that Mr. Smiley prevented mental health mitigation because he did not want to be portrayed as having mental health issues when the mitigation presented in fact portrayed him as having a mental health issue. That the full extent of Mr. Smiley's mental health mitigation was not presented to the jury was because trial counsel did not conduct a thorough investigation, not because Mr. Smiley prevented it.

This Court also found that trial counsel was not ineffective in their investigation of Mr. Smiley's upbringing because his mother would not have testified differently about Hope Ministries because she was still a member of the church at the time of the trial and that the school records did not reflect Mr. Smiley's account of abuse. However, if other members of Mr. Smiley's family had been investigated and testified, there would have been no need for Mr. Smiley's mother to testify against Hope Ministries. Mr. Smiley's other

family members could have given a more extensive account of the church. It also could have been explained why Hope Ministries account of the abuse may not be complete.

In finding that trial counsel was not ineffective for failing to investigate or present mitigation regarding Mr. Smiley's period of homelessness or his relationship with his aunt, this Court put inappropriate emphasis on trial counsel's purported strategy of maintaining a bright line between before Mr. Smiley's aneurysms and after. First of all, trial counsel still could have maintained a line between Mr. Smiley's behavior before the aneurysms and after while presenting more information about Mr. Smiley's homelessness and relationship with his aunt. As the circuit court noted in its order, the additional mitigation "fleshed that theory out and tended to give its persuasive effect more force." (PCR6135). Prior to the aneurysms, Mr. Smiley had no significant criminal history, even when he was on the streets and in dire circumstances. If anything, the fact that Mr. Smiley did not participate in criminal activity even when homeless as a teenager supports trial counsel's theory about the impact of the aneurysms.

What this Court also failed to consider is that a more thorough investigation would have obviated the potential harm that this Court pointed out about addressing Mr. Smiley's homelessness and relationship with his aunt. Mr. Smiley's homelessness only opens the door to harmful arguments if no information is provided about why he left home. Mr. Smiley's relationship with his aunt prior to the aneurysms is only harmful if no evidence of his aunt's manipulation and his background that led him to be vulnerable to such manipulation is introduced. These elements of Mr. Smiley's background only had the potential to be harmful because trial counsel failed to conduct an adequate investigation.

As the circuit court noted, Dr. Hartig's testimony would have been different had she known more about Mr. Smiley's background and the information "very well may have convinced at least one juror or Judge Harb at the time that a life sentence is appropriate." (PCR6135). The lack of investigation and deficiencies in the presentation of the mitigation in the penalty phase clearly prejudiced Mr. Smiley and he is entitled to a new penalty phase.

Claim J, Use of Dr. Waldman and Failure to Develop Mitigation

In denying this claim, this Court failed to consider several of the arguments put forward by Mr. Smiley. This Court found that Dr. Waldman was not unqualified because postconviction experts did not disagree with his diagnosis or his description of the effects of the aneurysms. However, this Court neglected to consider that, as noted by the circuit court, those experts also found that Dr. Waldman's analysis was incomplete in part because of trial counsel choice not to disclose important information. (PCR6142). Thus, while trial counsel cannot be found ineffective for relying on an expert evaluation that may not be as complete as others may desire, they are ineffective for causing the evaluation to be incomplete. As discussed in the claim above, Mr. Smiley cannot be found at fault for trial counsel failing to properly investigate and put forward key information from his background that would have led to a more complete evaluation. It also stretches credulity that Mr. Smiley would have objected to Dr. Waldman testifying to an ADHD diagnosis while allowing him to testify to an anosognosia diagnosis.

This Court also failed to consider that trial counsel did not effectively use Dr. Waldman's testimony to develop key mitigators or argue against key aggravators. For example, trial counsel failed to highlight Dr. Waldman's testimony that Mr. Smiley's condition prevented him from learning from the Riley murder, an important aggravator with heavy weight. (PPR2370-71). Trial counsel also failed to highlight Dr. Waldman's testimony that Mr. Smiley's condition could improve and how that supported a lack of future dangerousness, a mitigator. (PPR2363).

The complete lack of any development of the age mitigator by trial counsel was also not properly considered by this Court in denying this claim. Age was even more important for Mr. Smiley given how his young age interacted with the brain trauma from his aneurysms. (PCR4351). The excuse that Mr. Smiley did not want to be portrayed as having a mental disorder also does not apply to this factor. Yet trial counsel did not inquire with Dr. Waldman about or develop this factor at all. (PPR2343-2378).

In finding that trial counsel was not ineffective for using Dr. Waldman rather than a neurologist and neuropsychologist, this

Court misapprehended Mr. Smiley's claim. The argument is not that different experts would have simply testified more favorably for Mr. Smiley. The argument is that Dr. Waldman was completely unable to adequately and completely address Mr. Smiley's conditions because he was the wrong kind of expert. (PCR4385-86; 5439-40; 5484-85). He was not able to conduct the proper testing or assessments that were necessary to present competent mitigation. *Id.* This Court in finding that Dr. Waldman was a competent medical expert compresses wide areas of expertise and treats different kinds of professionals as interchangeable. The testimony of Mr. Smiley's postconviction experts clearly demonstrate that these types of professionals are not interchangeable.

The Court also overlooks key facts that made trial counsel's reliance on Dr. Waldman unreasonable. Dr. Waldman was not board-certified in neuropsychiatry. (PPR2375). He also testified in his deposition that he had only ever treated one person with aneurysms in 1992. (PPR2385). This should have been sufficient for trial counsel to come to the conclusion that he was not qualified to testify about Mr. Smiley's condition. This is not a situation where Mr. Smiley is

just looking back and questioning his expert's thoroughness and his trial counsel's decisions. There were ample indicators at the time and before trial that Dr. Waldman was not qualified to testify about Mr. Smiley's condition, or, at least, that his testimony alone would be insufficient.

When addressing the mistakes that Dr. Waldman made while testifying, this Court further mischaracterizes Mr. Smiley's claim. Mr. Smiley is not asking for this Court to adopt a categorical rule that an expert's minor mistakes render counsel's reliance on that expert unreasonable. The mistakes that Dr. Waldman made are part of the totality of why counsel's reliance on his testimony was unreasonable and highlights their failure to adequately prepare him. Dr. Waldman made reference to the non-existent MRI in his deposition testimony. (PCR3762). That provided trial counsel both another reason why Dr. Waldman was not qualified to testify and an opportunity to clarify his testimony, address the mistakes, and ensure that Dr. Waldman actually reviewed all of the medical records before testifying at trial.

In conclusion, Dr. Waldman was the incorrect expert to address Mr. Smiley's condition, leading to an incomplete expert opinion. Trial

counsel failed to thoroughly investigate and prepare their expert. Trial counsel also failed to provide important information to Dr. Waldman, which exacerbated this incompleteness. Dr. Waldman's testimony was incomplete because of trial counsel's failure to adequately investigate and prepare the mitigation. Trial counsel also failed to develop mitigating factors and argue against aggravating factors with the information they were able to extract from Dr. Waldman's testimony. Trial counsel's preparation and presentation for the penalty phase was completely inadequate and ineffective. Proper presentation of Mr. Smiley's medical mitigation reasonably could have resulted in a life sentence. He was therefore prejudiced by trial counsel's deficient performance.

Claim K, Newly Discovered Evidence of Dr. Waldman's Opiate Addiction

In finding that the claim that the newly discovered evidence that Dr. Waldman was addicted to opiates at the time he worked on and testified in Mr. Smiley's case would have impacted Mr. Smiley's death sentence impermissibly speculative, the Court fails to consider several important facts. First of all, that trial counsel would have hired a different expert had they known about Dr. Waldman's

addiction is hardly speculative. It would be highly ineffective for counsel to rely on his testimony if they had known about his addiction.

That a different expert would have provided more favorable testimony than Dr. Waldman is also grounded in the record. Trial counsel noted that Dr. Waldman's trial performance in this case was deficient compared to other performances. (PCR4787-88). Dr. Waldman testified that he was unaware of facts that he should have known had he properly reviewed the documentation he was provided. (PPR2416-20). The mistakes he made, which were discussed above, also demonstrate that his performance was affected by his addiction. Thus, an expert not experiencing active addiction likely would have provided more favorable testimony than Dr. Waldman. Dr. Waldman was the sole expert relied upon by trial counsel in the penalty phase. His testimony and credibility were vital, and they were clearly impacted by his addiction. Illustrated by the testimony of Mr. Smiley's postconviction experts, an adequate expert could have elucidated Mr. Smiley's condition in a manner that could have swayed jurors to vote for life instead of death. Thus, Mr. Smiley was

prejudiced by Dr. Waldman's addiction and should be granted a new sentencing hearing.

Claim L, Cumulative Prejudice in the Penalty Phase

As discussed above, when Mr. Smiley's claims and the facts are properly considered, there were numerous instances of deficient performance, and, thus, this Court should perform cumulative prejudice analysis. Taken together, trial counsel's deficiencies left a large amount of significant mitigation uncovered, including mental health evidence and evidence of trauma life circumstances such as physical and emotional abuse that resulted in impulse and trauma disorders. Further, even when mitigation was presented to the jury, trial counsel failed to develop or highlight it to the jury. Ultimately, the cumulative effect of the trial counsel's deficiencies during the penalty phase was to leave the State's case almost completely uncontroverted. Given the large amount of mitigation that existed and could have been demonstrated to the jury, a reasonable probability exists that the sentence would have been different had trial counsel not been deficient in their investigation and

presentation during the penalty phase. Mr. Smiley is entitled to a new sentencing hearing.

Denial of Appellant's Petition for Writ of Habeas Corpus

In finding that there was no prejudice in appellate counsel failing to raise the issue that the evidence from the Riley murder was not inextricably intertwined with the present case, the Court overlooks several important facts and mischaracterizes evidence. The DNA evidence did not implicate Mr. Smiley as the murderer for numerous reasons. The sweatshirt contained the DNA of multiple other contributors. (PCR6117). He lived with other suspects in the murder on and off over several years. (R5026). His DNA could have gotten on the sweatshirt without him ever wearing it or he could have worn the sweatshirt at an entirely different time. There was also no evidence that the shooter wore that sweatshirt. That his DNA was on the sweatshirt was ultimately irrelevant to whether he was the shooter.

The testimonial evidence was also very weak. Nearly everyone who testified against Smiley had strong motivations to lie given their statuses as potential co-conspirators (R4735, 4626) perjury charges,

(PCR67-71), and multiple other criminal charges (PCR4894-95, 5669-72, 8184-85). As discussed above in claim D, the identification of Mr. Smiley by Wilkerson was also weak and had numerous issues. Even if the ballistics evidence was not a central to the State's case, the prejudice of the jury learning that Mr. Smiley was involved in another shooting is great and that must also be weighed in determining the impact of allowing the evidence to reach the jury.

The trial court's limitations were wholly insufficient to prevent such prejudice. Even if it was unknown to the jury that the other case was another robbery homicide, they knew the other case involved the discharge of a firearm. A jury is likely to consider any case involving a shooting to be serious, regardless of if they know the shooting resulted in a death. Thus, the admission of the evidence prejudiced Mr. Smiley and appellate counsel should have raised the issue on direct appeal.

Conclusion

Mr. Smiley asks this Court to reconsider its affirmation of the postconviction court's denial of his postconviction motion and its

denial of his petition for a writ of habeas corpus and grant him a new trial, both guilt and penalty phases.

WHEREFORE, the Defendant respectfully requests this Honorable Court issue an order granting Defendant's Motion for rehearing.

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CERTIFICATE OF SERVICE

WE HEREBY CERTIFY that a true copy of the foregoing Motion for Rehearing has been served via the Florida Courts E-Filing Portal to the Clerk of the Supreme Court of Florida, the Honorable John Tomasino at williamstr@flcourts.org, tomasino@flcourts.org; the

Honorable Kevin Abdoney, Post Office Box 9000, Drawer J165, Bartow, Florida 33831-9000, cstevens@Jud10.flcourts.org; Michael W. Mervine, Assistant Attorney General, Michael.Mervine@myfloridalegal.com; capapp@myfloridalegal.com; Bonde Johnson, Assistant State Attorney, bjohnson@SAO10.com; Cindy Norris, cnorris@SAO10.com, on this 1st day of October, 2026.

WE HEREBY FURTHER CERTIFY that a copy of the foregoing has been sent via U.S. mail to Benjamim Davis Smiley, Jr., DOC# T72309, Union Correctional Institution, P.O. Box 1000, Raiford, FL 32083.

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that a true copy of the foregoing Motion to Supplement the Record was generated in Bookman Old Style 14-point font, pursuant to Fla. R. App. P. 9.210.

CERTIFICATION IN COMPLIANCE WITH FLORIDA RULE OF GENERAL PRACTICE AND JUDICIAL ADMINISTRATION 2.515

Undersigned counsel certified that the legal authorities identified in this pleading exist and are accurately cited.

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